



Bill Number: S.B. 1479

Carroll ADD COW Floor Amendment

Reference to: Senate engrossed bill

Amendment drafted by: Jason Theodorou

FLOOR AMENDMENT EXPLANATION

- Classifies, as a class 5 felony, rather than a class 4 felony, the act of knowingly recording a forged or groundless document asserting a claim in real property with the county recorder's office.

ADDITIONAL COW
CARROLL FLOOR AMENDMENT
SENATE AMENDMENTS TO S.B. 1479
(Reference to Senate engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.

~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

~~<<Green strikeout in carets>>~~ indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Title 11, chapter 3, article 3, Arizona Revised
3 Statutes, is amended by adding section 11-472, to read:

4 11-472. Recording; photo identification; exemptions

5 A. FOR ANY DOCUMENT THAT IS RECORDED IN PERSON AT THE RECORDER'S
6 OFFICE OR AT A RECORDING KIOSK, A PERSON SHALL PROVIDE THE RECORDER WITH A
7 VALID FORM OF PHOTO IDENTIFICATION UNLESS THE DOCUMENT TO BE RECORDED IS
8 SUBMITTED BY ANY OF THE FOLLOWING:

9 1. AN ESCROW OFFICER OR ESCROW OFFICE.

10 2. A TITLE INSURANCE AGENT OR TITLE INSURER AS DEFINED IN SECTION
11 20-1562.

12 3. A STATE-CHARTERED OR FEDERALLY CHARTERED BANK OR CREDIT UNION.

13 4. AN ACTIVE MEMBER OF THE STATE BAR OF ARIZONA.

14 5. A GOVERNMENTAL ENTITY, INCLUDING AN AGENCY, BRANCH OR
15 INSTRUMENTALITY OF THE FEDERAL GOVERNMENT.

16 B. THE RECORDER MAY NOT RETAIN A COPY OF THE PERSON'S
17 IDENTIFICATION, BUT SHALL NOTE IN THE RECORDING SYSTEM OR RECEIPT FOR THE
18 RECORDING, OR BOTH, THE FOLLOWING:

19 1. THE TYPE OF IDENTIFICATION.

20 2. THE NAME ON THE IDENTIFICATION.

21 3. THE IDENTIFICATION NUMBER.

22 C. THE INFORMATION NOTED PURSUANT TO SUBSECTION B OF THIS SECTION
23 IS NOT A PUBLIC RECORD, IS EXEMPT FROM TITLE 39, CHAPTER 1 AND IS NOT
24 SUBJECT TO DISCLOSURE.

25 Sec. 2. Title 11, chapter 3, article 7, Arizona Revised Statutes,
26 is amended by adding section 11-544, to read:

27 11-544. Notice to owner; changed information

1 ON OR BEFORE JANUARY 1, 2027, THE ASSESSOR SHALL PROVIDE A SYSTEM
2 FOR NOTIFYING AN OWNER OF A PARCEL OF REAL PROPERTY WHEN THE ASSESSOR
3 RECEIVES NOTICE OF A CHANGE IN THE OWNERSHIP OF OR THE MAILING ADDRESS FOR
4 THE OWNER OF THE PARCEL OF REAL PROPERTY. THE SYSTEM SHALL ALLOW AN OWNER
5 TO CHOOSE TO PARTICIPATE AND IS VOLUNTARY FOR THE OWNER, AND THE NOTICE
6 SHALL BE PROVIDED PROMPTLY BY EMAIL, TEXT MESSAGE OR OTHER SIMILAR MEANS.

7 Sec. 3. Section 11-1133, Arizona Revised Statutes, is amended to
8 read:

9 11-1133. Affidavit of legal value

10 A. Each deed evidencing a transfer of title and any contract
11 relating to the sale of real property shall have appended at the time of
12 recording an affidavit of the seller and the buyer to the transaction, or
13 the agent of either the seller or buyer, or both, in a form approved by
14 the department of revenue, who shall declare and jointly certify the
15 following information:

16 1. The name, ~~and~~ MAILING address AND TELEPHONE NUMBER of the buyer
17 and seller. THE BUYER AND SELLER MAY PROVIDE ADDITIONAL CONTACT
18 INFORMATION, INCLUDING EMAIL ADDRESSES.

19 2. The name and address where a tax statement may be sent.

20 3. The complete legal description of the property.

21 4. The situs address, if any, of the property.

22 5. The date of sale.

23 6. The total consideration paid for the property, the amount of
24 cash down payment and whether ~~or not~~ the type of financing included cash,
25 a new ~~third-party~~ THIRD-PARTY loan, a new loan from the seller, an
26 assumption of an existing loan or an exchange or trade of property.

27 7. Whether ~~or not~~ the estimated market value of personal property
28 received by the buyer equals five ~~per cent~~ PERCENT or more of the total
29 consideration.

30 8. The assessor's parcel number or numbers assigned to the real
31 property by the county assessor or, in the case of a new parcel or parcels
32 not yet assigned a parcel number, the parcel number or numbers of the
33 previous parcel or parcels from which the new parcel or parcels are
34 created.

35 9. The conditions of the transaction, including the relationship,
36 if any, of the parties.

37 10. The use and description of the property and, in the case of a
38 residential dwelling, whether the property is to be owner-occupied or
39 rented.

40 11. The name and address of the person to contact regarding
41 information contained on the affidavit.

42 B. If a beneficiary of a foreclosed trustee's deed receives payment
43 based on private mortgage insurance covering the sale that is in addition
44 to the proceeds of the sale, the beneficiary shall submit, in a form
45 approved by the department of revenue, to the county recorder in the
46 county where the property is located within four months after the date of

1 the trustee's sale a beneficiary's declaration of additional funds
2 received that contains the following:

3 1. The county assessor's parcel number or numbers assigned as of
4 the date of the trustee's sale.

5 2. The name and address of the beneficiary submitting the
6 declaration.

7 3. The date of the trustee's sale.

8 4. The highest bid amount received by the trustee at the trustee's
9 sale.

10 5. The recording number of the trustee's deed on sale.

11 6. The amount of any additional compensation received by the
12 beneficiary within three months after the date of the trustee's sale.

13 C. The county recorder shall refuse to record any deed and any
14 contract relating to the sale of real property if a complete affidavit of
15 legal value is not appended unless the instrument bears a notation
16 indicating an exemption pursuant to section 11-1134.

17 D. An affidavit is complete for **THE** purposes of this section if all
18 of the required information is stated on the affidavit form or is
19 indicated on the form as "not applicable".

20 Sec. 4. Repeal

21 Section 12-524, Arizona Revised Statutes, is repealed.

22 Sec. 5. Section 33-420, Arizona Revised Statutes, is amended to
23 read:

24 33-420. False documents; liability; special action; damages;
25 violation; classification

26 A. A person purporting to claim an interest in, or a lien or
27 encumbrance against, real property, who causes a document asserting such
28 claim to be recorded in the office of the county recorder, knowing or
29 having reason to know that the document is forged, ~~OR~~ groundless,
30 contains a material misstatement or false claim or is otherwise invalid is
31 liable to the owner or beneficial title holder of the real property for
32 the sum of ~~not less than five thousand dollars,~~ **AT LEAST \$5,000** or for
33 treble the actual damages caused by the recording, whichever is greater,
34 and reasonable attorney fees and costs of the action.

35 B. The owner or beneficial title holder of the real property may
36 bring an action pursuant to this section in the superior court in the
37 county in which the real property is located for such relief as is
38 required to immediately clear title to the real property as provided for
39 in the rules of procedure for special actions. This special action may be
40 brought based on the ground that the lien is forged, ~~OR~~ groundless,
41 contains a material misstatement or false claim or is otherwise invalid.
42 The owner or beneficial title holder may bring a separate special action
43 to clear title to the real property or join such action with an action for
44 damages as described in this section. In either case, the owner or
45 beneficial title holder may recover reasonable attorney fees and costs of
46 the action if ~~the~~ **THE OWNER OR BENEFICIAL TITLE HOLDER** prevails.

1 C. A person who is named in a document ~~which~~ THAT purports to
2 create an interest in, or a lien or encumbrance against, real property and
3 who knows that the document is forged, ~~OR~~ groundless, contains a material
4 misstatement or false claim or is otherwise invalid ~~shall be~~ IS liable to
5 the owner or BENEFICIAL title holder for the sum of ~~not less than one~~
6 ~~thousand dollars,~~ AT LEAST \$1,000 or for treble actual damages, whichever
7 is greater, and reasonable attorney fees and costs as provided in this
8 section, if ~~he~~ THE PERSON wilfully refuses to release or correct ~~such~~ THE
9 document of record within twenty days ~~from~~ AFTER the date of a written
10 request from the owner or beneficial title holder of the real property.

11 D. A document purporting to create an interest in, or a lien or
12 encumbrance against, real property not authorized by statute, judgment or
13 other specific legal authority is presumed to be groundless and invalid.

14 E. A person purporting to claim an interest in, or a lien or
15 encumbrance against, real property, who causes a document asserting such
16 claim to be recorded in the office of the county recorder, knowing or
17 having reason to know that the document is forged, ~~OR~~ groundless,
18 contains a material misstatement or false claim or is otherwise invalid,
19 is guilty of a class ~~1 misdemeanor~~ [4] [5] FELONY.

20 Sec. 6. Section 41-254, Arizona Revised Statutes, is amended to
21 read:

22 41-254. Personal appearance required; thumbprint; exceptions

23 A. If a notarial act relates to a statement made in or a signature
24 executed on a record, the individual making the statement or executing the
25 signature shall appear personally before the notarial officer.

26 B. If a notarial act involves a translator under section 41-253,
27 subsection F, the translator shall appear personally before the notary
28 public.

29 C. IF THE DOCUMENT TO BE NOTARIZED IS A DEED, QUITCLAIM DEED, DEED
30 OF TRUST OR OTHER DOCUMENT THAT AFFECTS REAL PROPERTY OR A POWER OF
31 ATTORNEY DOCUMENT, THE NOTARY PUBLIC SHALL REQUIRE THE PARTY SIGNING THE
32 DOCUMENT TO PLACE THE PARTY'S RIGHT THUMBPRINT IN THE NOTARY'S
33 JOURNAL. IF THE RIGHT THUMBPRINT IS NOT AVAILABLE, THE NOTARY PUBLIC
34 SHALL HAVE THE PARTY USE THE PARTY'S LEFT THUMB, OR ANY AVAILABLE FINGER,
35 AND SHALL SO INDICATE IN THE JOURNAL. IF THE PARTY SIGNING THE DOCUMENT
36 IS PHYSICALLY UNABLE TO PROVIDE A THUMBPRINT OR FINGERPRINT, THE NOTARY
37 PUBLIC SHALL SO INDICATE IN THE JOURNAL AND SHALL ALSO PROVIDE AN
38 EXPLANATION OF THAT PHYSICAL CONDITION.

39 D. SUBSECTION C OF THIS SECTION DOES NOT APPLY TO ANY OF THE
40 FOLLOWING:

41 1. A TRUSTEE'S DEED THAT RESULTS FROM A JUDICIAL OR NONJUDICIAL
42 FORECLOSURE.

43 2. A DEED OF RELEASE AND RECONVEYANCE.

44 3. A NOTARIAL ACT FOR A DOCUMENT PRESCRIBED BY SUBSECTION C OF THIS
45 SECTION FOR A REMOTELY LOCATED INDIVIDUAL IF THE AUDIOVISUAL RECORDING OF
46 THE NOTARIZATION SHOWS THE FORMS OF IDENTIFICATION PROVIDED FOR THE

1 NOTARIZATION, THE NOTARY RETAINS THE AUDIOVISUAL RECORDING FOR AT LEAST
2 SEVEN YEARS AND THE NOTARY OTHERWISE COMPLIES WITH SECTION 41-263.

3 Sec. 7. Section 41-263, Arizona Revised Statutes, is amended to
4 read:

5 41-263. Notarial act performed for remotely located
6 individual; definitions

7 A. A remotely located individual may comply with section 41-254 by
8 using communication technology to appear before a notary public.

9 B. A notary public located in this state may perform a notarial act
10 using communication technology for a remotely located individual if:

11 1. The notary public has any of the following:

12 (a) Personal knowledge under section 41-255, subsection A of the
13 remotely located individual's identity.

14 (b) Satisfactory evidence of the identity of the REMOTELY LOCATED
15 individual by oath or affirmation from a credible witness appearing before
16 and identified by the notary public under section 41-255, subsection B or
17 this section.

18 (c) Satisfactory evidence of the identity of the remotely located
19 individual by using at least two different types of identity proofing.

20 2. The notary public is able reasonably to confirm that a record
21 before the notary public is the same record in which the remotely located
22 individual made a statement or on which the individual executed a
23 signature.

24 3. The notary public, or a person acting on behalf of the notary
25 public, creates an audiovisual recording of the performance of the
26 notarial act.

27 4. For a remotely located individual located outside the United
28 States, both of the following apply:

29 (a) The record either:

30 (i) Is to be filed with or relates to a matter before a public
31 official or court, governmental entity or other entity subject to the
32 jurisdiction of the United States.

33 (ii) Involves property located in the territorial jurisdiction of
34 the United States or involves a transaction substantially connected with
35 the United States.

36 (b) The notary public has no actual knowledge that the act of
37 making the statement or signing the record is prohibited by the foreign
38 state in which the remotely located individual is located.

39 C. If a notarial act is performed under this section, the
40 certificate of notarial act required by section 41-264 and the short form
41 certificate provided in section 41-265 must indicate that the notarial act
42 was performed using communication technology.

43 D. A short form certificate provided in section 41-265 for a
44 notarial act subject to this section is sufficient if either of the
45 following applies:

46 1. The form of certificate complies with rules adopted under
47 subsection G, paragraph 1 of this section.

1 2. The certificate is in the form provided in section 41-265 and
2 contains a statement substantially as follows: "This notarial act involved
3 the use of communication technology."

4 E. A notary public, a guardian, conservator or agent of a notary
5 public or a personal representative of a deceased notary public shall
6 retain the audiovisual recording created under subsection B, paragraph 3
7 of this section or cause the recording to be retained by a repository
8 designated by or on behalf of the person required to retain the recording.
9 Unless a different period is required by rule adopted under subsection G,
10 paragraph 4 of this section **AND EXCEPT AS PRESCRIBED BY SECTION 41-254**,
11 the recording must be retained for a period of at least five years after
12 the recording is made.

13 F. Before a notary public performs the notary public's initial
14 notarial act under this section, the notary public must notify the
15 secretary of state that the notary public will be performing notarial acts
16 with respect to remotely located individuals and identify the technologies
17 the notary public intends to use. If the secretary of state has
18 established standards under subsection G of this section and section
19 41-275 for approval of communication technology or identity proofing, the
20 communication technology and identity proofing must conform to the
21 standards.

22 G. In addition to adopting rules under section 41-275, ~~on or before~~
23 ~~July 1, 2022~~, the secretary of state shall adopt rules under this section
24 regarding performance of notarial acts for remotely located individuals.
25 The rules may:

26 1. Prescribe the means of performing a notarial act involving a
27 remotely located individual using communication technology.

28 2. Establish standards for communication technology and identity
29 proofing.

30 3. Establish requirements or procedures to approve providers of
31 communication technology and the process of identity proofing.

32 4. Establish standards and a period for the retention of an
33 audiovisual recording created under subsection B, paragraph 3 of this
34 section.

35 H. Before adopting, amending or repealing a rule governing
36 performance of a notarial act with respect to a remotely located
37 individual, the secretary of state must consider:

38 1. The most recent standards regarding the performance of a
39 notarial act with respect to a remotely located individual adopted by
40 national standard-setting organizations and the recommendations of the
41 national association of secretaries of state.

42 2. Standards, practices and customs of other jurisdictions that
43 have laws substantially similar to this section.

44 3. The views of governmental officials and entities and other
45 interested persons.

46 I. For the purposes of this section:

1 1. "Communication technology" means an electronic device or process
2 that:

3 (a) Allows a notary public and a remotely located individual to
4 communicate with each other simultaneously by sight and sound.

5 (b) When necessary and consistent with other applicable law,
6 facilitates communication with a remotely located individual who has a
7 vision, hearing or speech impairment.

8 2. "Foreign state" means a jurisdiction other than the United
9 States, a state or a federally recognized Indian tribe.

10 3. "Identity proofing" means a process or service by which a third
11 person provides a notary public with a means to verify the identity of a
12 remotely located individual by a review of personal information from
13 public or private data sources.

14 4. "Outside the United States" means a location outside the
15 geographic boundaries of the United States, Puerto Rico, the United States
16 Virgin Islands and any territory, insular possession or other location
17 subject to the jurisdiction of the United States.

18 5. "Remotely located individual" means an individual who is not in
19 the physical presence of the notary public who performs a notarial act
20 under subsection B of this section.

21 Enroll and engross to conform

22 Amend title to conform

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